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Nebraska Medicaid Work Requirements Frequently Asked Questions

H.R. 1 (the "One Big Beautiful Bill Act") became federal law on July 4, 2025. It made changes to the Nebraska Medicaid program. This frequently asked questions document (FAQ) explains the new work requirements.

Q: Who must meet work requirements?

Most adults enrolled in Medicaid through Medicaid expansion (also known as Heritage Health) must meet work requirements unless they qualify for an exemption.

People enrolled through Medicaid expansion are Medicaid members who:

- Are ages 19–64
- Are not pregnant
- Do not have a disability
- Are not enrolled in Medicare
- Meet income limits (up to 138% of the federal poverty level or about $22,025 per year for one person or $45,540 for a family of four)
- Are U.S. citizens or meet immigration rules

Work requirements only apply to people enrolled through Medicaid expansion, which began in Nebraska in 2020. Some people may qualify for work requirement exemptions, including for temporary hardships.

Q: What are work requirements?

If you are enrolled in Medicaid through Medicaid expansion, you must complete at least 80 hours of approved activities during a qualifying month. Approved activities include:

- Working a paid job
- Taking part in a work program
- Doing community service (volunteering)

You can also meet work requirements by attending school or participating in a registered apprenticeship at least half time (of the program's full time), or you can combine hours in more than one of the activities to reach a total of 80 hours in at least one month.

Q: When do work requirements start?

Work requirements begin May 1, 2026.

- Current members (for renewals starting May 2026): You must have completed work requirements for at least one qualifying month since your last renewal.

- New applicants (starting May 2026): You must complete work requirements in the month before you apply.

Q: What is a qualifying month?

- For current members: Any month since your last renewal.
- For new applicants: The month before you apply.

Q: How will Medicaid check if I met the requirement or qualify for an exemption?

Nebraska Medicaid will first check information we already have available. If more information is needed, we will contact you. If we contact you for more information, you must send the information within 30 days, or you may lose your Medicaid coverage.

You can respond:

- Online
- By phone
- By mail
- In person

You may need to complete a declaration form. This form is a legal document.

If Medicaid can confirm you met the requirement for at least one qualifying month, you will be considered compliant for the full eligibility period.

Q: Do I need to send documents now?

No. Do not send new documents unless Medicaid asks you to. You must still report changes that could affect your eligibility.

Q: What counts as “working”?

Any paid job (or multiple jobs) totaling 80 hours in a qualifying month counts. You can also qualify by earning the federal “minimum threshold.”

Q: What is the federal minimum threshold?

The federal minimum threshold is the amount of money that would be earned by working 80 hours at the federal minimum wage. This amount is about $580 per month. If you earn at least $580 in a month, you meet the work requirement even if you work fewer than 80 hours. Seasonal workers can qualify if their six-month average income meets the threshold.

Q: What kind of income counts?

Nebraska Medicaid is working with the federal government to confirm guidance on income. This question will be updated once guidance is received.

Q: Does income from dependents count?

No. Meeting Medicaid work requirements will be determined on an individual basis for each applicant or current member based on Medicaid income rules.

Q: What is seasonal work?

Seasonal work happens during certain times of the year, such as agricultural work and holiday retail jobs.

Q: Do retired people have to return to work?

If you are in the Medicaid expansion group and do not qualify for another exemption, you must meet work requirements to keep coverage.

Q: What counts as school or apprenticeship?

- Enrolled in an accredited institution of higher education or technical school at least half-time
- Participating in a registered apprenticeship at least half-time
- Enrolled in high school or a General Educational Development (GED) program at least half-time

You must provide official school documents if asked.

Q: How can I tell if my school is accredited, and how much time is 'half-time?'

Most schools that are accredited make their accreditation information available for the public to see. If you cannot find it, check with the U.S. Department of Education.

Half-time means enrollment in at least half of the program's full-time status. If you are attending an accredited school or participating in a registered apprenticeship at least half-time, you will meet work requirements. Nebraska Medicaid is working with the federal government to confirm the number of hours needed for "half-time" enrollment.

Q: What counts as a work program?

Attending a job-skills or training program run by a government or nonprofit organization for 80 hours during a qualifying month counts.

The Nebraska Department of Labor offers help at: https://neworks.nebraska.gov/vosnet/Default.aspx

Q: Does looking for a job on my own count?

No. Job searching outside of an approved program does not count.

Q: What counts as community service?

Volunteering 80 hours in a qualifying month. You must complete a declaration form to report volunteer hours. Nebraska Medicaid is working with the federal government to get more information. This will be updated once the information is received.

Q: How do I get volunteer hours approved for Medicaid work requirements?

Individuals must complete a declaration form showing they completed the required number of community service or volunteer hours.

Q: Who is exempt from work requirements?

You do not need to meet work requirements if you are:

- Under age 26 and aged out of foster care
- A member of a federally recognized Native American tribe, an Urban Indian, a California Indian, or if you receive services through the Indian Health Service (IHS)
- A parent or caretaker of a child age 13 or younger
- Caring for a person with a disability
- A veteran with a total disability rating
- Medically frail
- In a household that gets supplemental nutrition assistance program (SNAP) or Temporary Assistance for Needy Families (TANF) benefits and are compliant under certain conditions with work requirements
- In a qualified drug or alcohol treatment program
- Incarcerated or recently released (within 90 days of a qualifying month)
- Pregnant or had Medicaid while pregnant and are up to 12 months postpartum

You may need to provide proof of your exemption.

Q: If I turned 19 years old right before I applied for Medicaid, will I have to complete work requirements?

If you apply for Medicaid at age 19 but in the qualifying month (the month prior to application) you were 18, you would be exempt from work requirements until your first renewal.

Q: How do people who were formerly in foster care get an exemption?

If you aged out of the foster care system, had Medicaid at the time you aged out, and are currently under age 26, you will not need to complete work requirement activities. Let the Medicaid program know if you aged out of the foster care system, either in Nebraska or in another state.

Q: How do people with a tribal affiliation get an exemption?

American Indians that are part of Federally recognized tribes, Alaska Natives, Urban Indians, California Indians, or otherwise eligible to receive services through the Indian Health Service (IHS), would not need to complete work requirement activities as part of qualifying for Medicaid. Let the Medicaid program know if you have a tribal affiliation.

Q: How do parents, caretakers, or guardians get an exemption?

Parents, caretakers, or guardians who care for a child up to and including age 13, or care for an individual who has a disability (regardless of age) would not need to complete work requirement activities. Let the Medicaid program know if these situations apply to you. You may need to complete a declaration form.

Q: How do pregnant women get an exemption during and after pregnancy?

Let the Medicaid program know if you are pregnant, including the expected due date. You will not need to complete work requirement activities during any eligibility period when you are pregnant or if you had Medicaid while pregnant and are up to 12 months postpartum.

Q: Does attending Alcoholics Anonymous count as an exemption for participating in a drug addiction or alcoholic treatment program?

No, attending Alcoholics Anonymous (AA) or similar drug and alcohol support groups does not count as participating in a drug addiction or alcoholic treatment program to meet work requirements.

Q: What does "medically frail" mean?

You may qualify if you have:

- Blindness or disability
- Substance use disorder
- A disabling mental health condition
- A serious or complex medical condition
- A serious physical, intellectual, or developmental disability

Medicaid may ask for documentation.

Q: What is a temporary hardship?

You may qualify for a temporary exemption if:

- You were hospitalized or in a nursing facility
- You or a dependent traveled to receive serious medical care that wasn't available in your community
- You live in a county under a federal emergency
- You live in a county with high unemployment (8 percent or 1.5 times the national unemployment rate).

Some situations require a declaration form.

Q: If a temporary hardship applies to me, how will Nebraska Medicaid know?

If any of the temporary hardships apply to you, you may need to submit additional information to be exempted from needing to complete work requirement activities.

You will be required to complete and send a declaration form to DHHS if:

- You were hospitalized or lived in a nursing home or similar facility.
- You or a dependent had to travel outside your community to receive care to treat a serious health condition.

You can submit the declaration form to DHHS online, over the phone, by mail, or in person.

If you lived in a county currently under a federal emergency declaration or in a county with a high unemployment rate, DHHS will verify if these hardships apply to you. You will not need to complete a form for these situations.

Q: Can I get an exemption ahead of time for a future medical procedure?

No. You cannot qualify in advance. You may qualify for a temporary hardship at your next renewal if needed.

Q: Do people waiting to get on Social Security Disability Insurance (SSDI) have to work while they are going through the process?

Somebody who is applying for Social Security Disability Insurance (SSDI) or "Disability" may also qualify for medically frail status or a temporary hardship event.

If you are already enrolled in Nebraska Medicaid, we will try to use information we already have available to see if one of these conditions applies to you. If Nebraska Medicaid does not have enough information, we will request more. You may need to complete a declaration form describing your disability.

Q: If I'm receiving SSDI benefits, will I have to complete work requirement activities?

If you are receiving disability benefits under SSDI and enrolled in the expansion group, you would meet the medically frail exemption.

Nebraska Medicaid will try to use information we already have available to see if you have completed work requirement activities or qualified for an exemption. If Nebraska Medicaid does not have enough information, we will request more. You may need to complete a declaration form describing your disability.

Q: How will I know if work requirements apply to me?

Nebraska Medicaid sent a notice by mail to everyone enrolled in Nebraska Medicaid through Medicaid expansion as of January 1, 2026. Nebraska Medicaid also sent an email or text to those people who have told Nebraska Medicaid they prefer electronic notices.

Nebraska Medicaid will continue to send this notice to people who are newly enrolled in Nebraska Medicaid through Medicaid expansion between January 1, 2026, and May 1, 2026.

Nebraska Medicaid will also share more information on our website: https://dhhs.ne.gov/WorkRequirements.

Q: What happens if I don't meet work requirements?

Medicaid will send a notice giving you 30 days to respond if we cannot confirm that you meet Medicaid work requirements. If you do not complete required activities and are not exempt, you will lose Medicaid coverage. Medicaid will send another notice prior to closing your coverage. If your coverage ends, you must meet work requirements and submit a new application to regain coverage through Medicaid expansion.

Q: Where can I get insurance if I lose Medicaid?

You can apply through the federal marketplace at: https://www.healthcare.gov/. If you are not meeting Medicaid work requirements, you will not qualify for advanced premium tax credits.

Q: Will this affect others in my household?

Work requirements only affect the person who must meet them. For example, if a parent loses coverage, the child's Medicaid will not be affected.

Q: Do I need to report changes?

Yes. You must report changes that could affect your benefits, such as:

- Job or income changes
- Marriage, divorce, pregnancy, or adoption
- Moving to a new address

You can report changes:

- **Online:** at https://iserve.nebraska.gov/
- **By mail:** P.O. Box 2992
  Omaha, NE 68103-2992
- **By phone:**
  - Phone Number: (855) 632-7633 (select option 3)
  - Lincoln Phone Number: (402) 473-7000 (select option 3)
  - Omaha Phone Number: (402) 595-1178 (select option 3)
- **In person:** at a local DHHS office https://dhhs.ne.gov/Pages/Public-Assistance-Offices.aspx

FAQ Version History

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